

NOTICE OF LODGMENT
AUSTRALIAN COMPETITION TRIBUNAL

This document was lodged electronically in the AUSTRALIAN COMPETITION TRIBUNAL and has been accepted for lodgment pursuant to the Practice Direction dated 13 July 2026. Filing details follow and important additional information about these are set out below.

Lodgment and Details

Document Lodged:	Affidavit
File Number:	ACT 1 of 2026
File Title:	APPLICATION BY COLES SUPERMARKETS AUSTRALIA PTY LTD
Registry:	VICTORIA – AUSTRALIAN COMPETITION TRIBUNAL



REGISTRAR

Dated: 30/09/2026 5:46 PM

Important information

This Notice has been inserted as the first page of the document which has been accepted for electronic filing. It is now taken to be part of that document for the purposes of the proceeding in the Tribunal and contains important information for all parties to that proceeding. It must be included in the document served on each of those parties.

1. [Confidential and governed by confidentiality Regime made by Justice O'Bryan on 21 July 2026]

IN THE AUSTRALIAN COMPETITION TRIBUNAL
APPLICATION BY COLES SUPERMARKETS AUSTRALIA PTY LTD
ACT 1 OF 2026

Affidavit

Affidavit of: Saurav Sachdev
Re: Application by Coles Supermarkets Australia Pty Ltd
Address: 800 Toorak Rd, Hawthorn East, Victoria 3123
Occupation: Head of Technology – Data and AI Platform
Date: 11 September 2026

I, Saurav Sachdev, of 800 Toorak Rd, Hawthorn East, Victoria 3123, Head of Technology – Data and AI Platform at Coles Supermarkets Australia Pty Ltd affirm:

1. Unless stated otherwise, I make this affidavit from my own knowledge and from my review of certain records of, or otherwise in the possession of, Coles Supermarkets Australia Pty Ltd (**Coles**). Where statements are not made from my own knowledge, they are made to the best of my information and belief after due inquiry, and I have set out the sources of my information.
2. In making this affidavit, I am not instructed, nor do I intend to, waive legal professional privilege on behalf of Coles in relation to any subject referred to in this affidavit. Nothing in affidavit ought to be construed as constituting a waiver of legal professional privilege.
3. Exhibited to me at the time of affirming this affidavit and marked “**SS-1**” is a confidential electronic bundle of documents, separated by virtual tab numbers.
4. I am the Head of Technology – Data and AI Platform at Coles and I am authorised to make this affidavit on Coles’ behalf. In this role, I am responsible for leading the technology strategy, development and operation of Coles’ data and artificial intelligence platforms. My role includes overseeing the technology teams and systems that enable data management, analytics and AI capabilities across the organisation. When data requests are made of Coles, including under section 155 of the *Competition and Consumer Act 2010* (Cth), my team is responsible for creating, compiling and / or extracting the data.
5. On 12 February 2026, the Australian Competition and Consumer Commission (**ACCC**) issued a notice under section 155(1)(a) and (b) to Coles (**Relevant Notice**). A copy of the Relevant Notice is exhibited at **tab 1** of **SS-1**.
6. Item 3 of Schedule 1 of the Relevant Notice required Coles to provide a native Excel spreadsheet file stating for each month from 1 July 2024 to 31 January 2026 at Coles Kalgoorlie:
 - a. the total revenue generated, excluding GST;
 - b. the total number of transactions; and

Filed on behalf of (name & role of party) Coles Supermarkets Australia Pty Ltd, Applicant
Prepared by (name of person/lawyer) Liza Carver
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(include state and postcode)

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- c. the average number of items purchased in each transaction,

(Item 3).

7. Item 4 of Schedule 1 of the Relevant Notice required Coles to provide a native Excel spreadsheet file identifying the 2,000 SKUs which generated the highest total revenue for the 2024-25 financial year at Coles Kalgoorlie (Item 4). For each SKU, Coles was required to provide:
 - a. the SKU identification number;
 - b. the product name;
 - c. its product category;
 - d. its product sub-category;
 - e. its product class;
 - f. its Business Unit;
 - g. total 2024-25 financial year sales revenue for the SKU, excluding GST; and
 - h. total quantity of units sold for the SKU in the 2024-25 financial year,

(Item 4).

8. On 19 February 2026, Coles provided its response to the Relevant Notice, including Items 3 and 4. Coles' responses to Items 3 and 4 are exhibited at **tabs 2 and 3 of SS-1** respectively.
9. Jai Navaneethakrishnan, Operations Manager - Data, who sits within my team, manages the Support Engineers responsible for extracting the data in response to Items 3 and 4 of the Relevant Notice. I am informed by Jai Navaneethakrishnan and believe that, in the course of preparing material for the purposes of the present proceedings, the following errors in the data produced in response to Items 3 and 4 of Schedule 1 of the Relevant Notice were identified:
 - a. **Double deduction of GST:** In extracting the data, GST was incorrectly deducted from revenue data that was already GST-exclusive. This had the effect of understating the revenue figures included in the Items 3 and 4 responses.
 - b. **Use of an incorrect data source:** The data was drawn from a source [REDACTED]. The data should instead have been sourced from the [REDACTED]. Using the aggregated data source resulted in inaccuracies in the calculated revenue and average number of items purchased.
 - c. [REDACTED] **not filtered out:** [REDACTED]. This resulted in a slight overstatement of the total number of transactions reported in the Item 3 response.
 - d. [REDACTED] **not filtered out:** [REDACTED] were not correctly filtered out of the data. This resulted in a slight overstatement of the

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total number of products sold, and thus potentially, the average number of items per transactions reported in the Item 3 response.

- e. **Methodology for units sold in respect of weighted products:** The original data extraction applied a methodology for calculating total quantity of units sold in respect of products sold by weight whereby, for example, [REDACTED]

[REDACTED] This had an effect on the total number of products sold and thus, potentially the average number of items per transaction in the Item 3 response. Instead, [REDACTED]

10. I am informed by Jai Navaneethakrishnan and believe that that these errors do not affect any other information or responses provided by Coles to the ACCC in connection with the Determination.
11. Mr Navaneethakrishnan has prepared revised responses to Items 3 and 4. Based on my review of those responses and the information provided to me by Mr Navaneethakrishnan I believe that the revised responses correct the errors identified in paragraph 9 above. Copies of the revised Items 3 and 4 responses are exhibited at **tabs 4 and 5 of SS-1** respectively.

The contents of this affidavit are true and correct and I make it knowing that a person making a false affidavit may be prosecuted for the offence of perjury.

Affirmed by the deponent
at Melbourne
in the State of Victoria
on 11 September 2026
Before me:

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Saurav Sachdev

Signature of deponent

Alexander Shepherd

Signature of witness

Name, address and qualification of witness

Alexander James Shepherd
Level 34, 161 Castlereagh Street, Sydney NSW 2000
Australian Legal Practitioner

A person authorised under section 19(1) of the *Oaths and Affirmations Act 2018* (Vic) to take an affidavit.

This affidavit, as signed and notated by the authorised affidavit taker, was signed by the deponent by electronic means.

This affidavit was signed in front of the authorised affidavit taker by means of audio visual link.

The authorised affidavit taker has used an electronic copy of this affidavit and not the original in completing the jurat requirements.

This affidavit is an electronic copy, not an original.

**COLES SUPERMARKETS AUSTRALIA PTY LIMITED APPLICATION FOR
REVIEW OF AUSTRALIAN COMPETITION AND CONSUMER COMMISSION
MERGER AUTHORISATION DETERMINATION (MN-01068)**

Commonwealth of Australia
Competition and Consumer Act 2010

In the Australian Competition Tribunal

File No. ACT 1 of 2026

Re Application for review of a determination made by the Australian Competition and Consumer Commission under subsection 51ABZE(1) of the *Competition and Consumer Act 2010*

CERTIFICATE IDENTIFYING EXHIBIT

This is the confidential electronic exhibit marked 'SS-1' now produced and shown to Saurav Sachdev at the time of affirming his affidavit on 11 September 2026.

Saurav Sachdev

Before me:

Alexander Shepherd

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Signature of witness:

Name of witness: Alexander James Shepherd

Address of witness: Level 34, 161 Castlereagh Street, Sydney NSW 2000

Qualification of witness: Australian Legal Practitioner

A person authorised under section 19(1) of the *Oaths and Affirmations Act 2018* (Vic) to take an affidavit.